

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC APPEAL No.24/2026

M/s Haji Agha Muhammad Khan & Sons,
Through its Authorized Representative Sakhi Muhammad,
Resident of Panezai Palaza, Suraj Ganj Bazar, Opposite to Thana Road, Quetta.

.... Appellant

Versus

1. Secretary, Government of Baluchistan, Public Health Engineering Department.
2. Executive Engineer Public Health Engineering Department, Pishin,
3. Chairman Grievance Committee, Public Health Engineering, Division Quetta.
4. Chief Engineer, Public Health Engineering, Division Quetta

.... Respondents

Quorum

1. Habib-Ur-Rehman Jamot.....Chairman PRC
2. Mubashir Ali Khan (FCIPS).....Member PRC
3. Engr. Junaid Shah.....Member PRC
4. Iftikhar Ahmed Mir.....Private Member PRC
5. Syed Muheebullah.....Private Member PRC

APPEAL UNDER RULE-56-A OF THE BPPR AGAINST TSE No. 252612918703

For the Appellant: Mr. Sakhi Muhammad, Representative

For the Respondents No. 2: Mr. Asmat, Representative

DECISION

Brief Facts

1. The Executive Engineer, Public Health Engineering, District Pishin (Respondent No. 2), invited bids via TSE No. 252612918703 for the project titled: "Construction of D/D of Bore, S/I of Solar System & Laying of Pipe for WSS Killi Tahir Bostan Chowkal Manzaki Pishin, PSDP No. 3943(R&UDP)2025-26", with an estimated approved cost of PKR 13,399,000/-.
2. The Appellant, Haji Agha Muhammad Khan & Sons, participated in the tender but was technically disqualified on the grounds that the company of Appellant is not registered with the Baluchistan Public Procurement Regulatory Authority, Quetta and the EPPS system failed to accept the attendance of the Appellant. Being aggrieved, the Appellant filed a grievance

before the Grievance Redressal Committee (GRC) on 22-12-2025, but till date the Grievance Redressal Committee (GRC) has not decided the complaint of the Appellant.

3. The Appellant preferred this Appeal before the Procurement Review Committee (PRC), asserting that they met all eligibility requirements. The Appellant contend that the said company was registered on 04-04-2023 with BPPRA.

Prayer Clause of the Appellant

Therefore, Appellant has sought the following prayer

- a) Declare the procurement process conducted by the Procuring Agency as fundamentally flawed and in blatant violation of the BPPRA Rules;
 - b) Set aside the technical disqualification and pass an order for the re-evaluation of the tender for TSE No. 252612918703;
 - c) Direct the Respondents to duly record the attendance and participation of the Appellant;
 - d) Declare the actions of the Respondents as mis-procurement;
 - e) Restrain/Enjoin the Procuring Agency from issuing or uploading a Work Order pending the final disposal of this Appeal;
 - f) Grant any other relief that this Committee deems fit and proper in the circumstances.
4. Upon admission of the Appeal, this Committee issued notices to respondents, directing them to appear and submit written replies along with relevant records pertaining to the impugned tender.

Contention of Respondent

5. Respondent No. 2 appeared, submitted reply along with annexures and contested the Appeal on both factual and legal grounds. The Respondent No.2 stated that the Appellant was not registered with the B-PPRA hence the Procuring Agency was unable to upload the attendance on EPPS system.

Findings and Decision of the Committee

6. The primary issue arising from the pleadings whether the Appellant is registered with the Balochistan Public Procurement Regulatory Authority, Quetta.
7. Upon careful review of the record, the Committee observed that the Procuring Agency conducted a manual bidding process where all participants, including the Appellant, formally marked their attendance. However, when uploading the attendance to the e-Public Procurement System (EPPS), the Procuring Agency inadvertently entered the Appellant's NTN as 3289128 instead of 32891288, resulting in a dashboard error. The Committee verified this discrepancy with the B-PPRA Management Information System (MIS), which confirmed that the Appellant was duly registered with the Balochistan Public Procurement Regulatory Authority (B-PPRA), Quetta, as of April 4, 2023. The Procuring Agency failed to exercise due diligence in verifying the Appellant registration from the B-PPRA prior to the rejection.

8. The query was raised to the Appellant whether any complaint was filed before the appropriate forum (CRC) or otherwise, to which he replied that the office of the Executive Engineer, Pishin received the copy of complaint and also provided the same to the CRC which the Respondant No.2 denied.
9. That the controversy between the parties regarding submission of complaint or otherwise requires evidence which could only be determined by pro & contra evidence and this forum lacks jurisdiction to lead evidence. Furthermore, the Appellant has also failed to prove that the complaint was filed before the CRC as per Rule 56 of BPP Rules 2014.
10. During the hearing of the Appeal an untoward law & order situation arose in entire province on 31/01/2026 due to which subsequent hearing of the Appeal was frequently postponed on the request of Appellants/Respondents. Hence the instant decision suffered some inordinate delay which is regretted.

Order

11. The Committee accepts the Appeal.
12. The evaluation of bids relating to TSE No.252612918703 are declared void and ordered to be re-evaluated.
13. The award of contract, if any, is hereby suspended till the re-evaluation of bids and to be awarded to the eligible bidder afresh after such re-evaluation.
14. Compliance report shall be submitted before this Committee within fifteen (15) days.

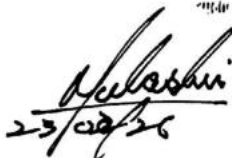
The Appeal is accordingly disposed of in the above terms.

The Registrar of this Committee is directed to communicate a copy of this decision to the Appellant and all Respondents.


Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Procurement Review Committee
(B-PPRA)

23/2/2026


23/02/26

Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah 23/02/26

Member
Procurement Review Committee
BPPRA


23/2/2026

Member
Procurement Review Committee
BPPRA


23/2/26

Member
Procurement Review Committee
BPPRA